

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

USL AUTO EXPORTING INC., *Complainant*

v.

EASY SHIPPING CORPORATION, *Respondent*.

DOCKET NO. 23-13

Served: March 28, 2025

ORDER OF: Mary A. HERVEY, *Administrative Law Judge*.

**ORDER DIRECTING COMPLAINANT TO FILE AMENDED SUPPLEMENTAL APPENDICES
CONTAINING A COMPLETE APPENDIX OF EXHIBITS**

This matter comes before the undersigned, sua sponte, upon a determination that Complainant's recently filed Supplemental Appendices are incomplete. Accordingly, Complainant is ordered to file no later than April 4, 2025, amended Supplemental Appendices containing copies of all exhibits listed in the table of contents of the recently submitted Supplemental Appendices, and will be deemed to have waived the right to supplement the record further if it fails to comply with this order.

The relevant procedural history is as follows. On February 10, 2025, the undersigned issued the Order Overruling Complainant's Objection to Extension of Time, Granting Complainant's Motion for Leave to Issue Subpoena to CMA CGM, Granting Complainant's Motion to Supplement Record and Compel Respondent to Produce Correspondence and Setting new deadlines. In pertinent part, the order granted Complainant's motion to serve a subpoena on CMA CGM after the close of discovery, granted Complainant's motion to supplement the record with Exhibit U referenced in its motion, and extended the deadline to April 4, 2025, for both Complainant and Respondent to file supplemental briefs and appendices.

On March 26, 2025, Complainant filed Complainant's Second Supplemental Brief and Supplemental Appendices. The Supplemental Brief references certain exhibits Complainant states it obtained through the subpoena issued to CMA CGM, but these exhibits are not contained in Complainant's Supplemental Appendices. The Supplemental Appendices also do not contain Complainant's Exhibit U despite that its motion to supplement the record with this exhibit was granted. Additionally, the table of contents for Complainant's Supplemental Appendices lists Exhibits A through X with corresponding Bates Stamp numbers CX_1 to CX_335 but the Supplemental Appendices only include Exhibits A through T with corresponding Bates Stamp numbers CX_1 through CX-139. As such, the undersigned finds that Complainant's Supplemental Appendices are incomplete.

For the foregoing reasons, it is hereby **ORDERED** that:

Complainant shall file amended Supplemental Appendices containing Exhibits A through X with corresponding Bates Stamp numbers CX_1 through CX_335 by **April 4, 2025**, and if Complainant fails to comply with this order it will be deemed to have waived the right to further supplement the record.

Mary A. Hervey -S

Digitally signed by Mary A.
Hervey -S
Date: 2025.03.28 09:23:35 -04'00'

Mary Apostolakos Hervey
Administrative Law Judge